

M. S. P. Mandal's

Deogiri Institute of Engineering and Management Studies, Aurangabad
Department of Mechanical Engineering

Intellectual Property Rights

B.Tech B

2023-24 Part-I

Prepared by,

Chetan D. Sagar

Assistant Professor

Mechanical Engineering Department

Intellectual Properties

Intellectual property is the legal term, why should have the knowledge of this?

- Innovations is the side product of engineers mind.
- Its need of an hour.

Course Outcome

Intellectual Property Rights

BTMOE705C	OEC4	Intellectual Property Rights	3-0-0	3 Credits
-----------	------	------------------------------	-------	-----------

Teaching Scheme:	Examination Scheme:
Lecture: 3 hrs/week	Continuous Assessment: 20 Marks Mid Semester Exam: 20 Marks End Semester Exam: 60 Marks (Duration 03 hrs)

Pre-Requisites: None

Course Outcomes: At the end of the course, students will be able to:

CO1	State the basic fundamental terms such as copyrights, Patents, Trademarks etc.,
CO2	Interpret Laws of copy-rights, Patents, Trademarks and various IP registration Processes.
CO3	Exhibit the enhance capability to do economic analysis of IP rights, technology and innovation related policy issues and firms commercial strategies.
CO4	Create awareness at all levels (research and innovation) to develop patentable technologies.
CO5	Apply trade mark law, copy right law, patent law and also carry out intellectual property audits.
CO6	Manage and safeguard the intellectual property and protect it against unauthorized use.

Program Outcomes

Mapping of course outcomes with program outcomes

Course Outcomes	Program Outcomes											
	PO1	PO2	PO3	PO4	PO5	PO6	PO7	PO8	PO9	PO10	PO11	PO12
CO1	1											
CO2								1				
CO3		1						1				
CO4										1		
CO5	1							1				
CO6								2				

Program Outcomes: Graduate Attributes

- PO1: Engineering Knowledge
- PO2: Problem Analysis
- PO3: Design/Development of Solutions
- PO4: Conduct investigations of complex problems
- PO5: Modern tool usage
- PO6: The Engineer and Society
- PO7: Environment and Sustainability
- PO8: Ethics
- PO9: Individual and Team Work
- PO10: Communication
- PO11: Project Management and Finance
- PO12: Life-Long Learning

Program Outcomes: Graduate Attributes

1. **Engineering knowledge:** Apply the knowledge of mathematics, science, engineering fundamentals, and an engineering specialisation to the solution of engineering problems involving research.
2. **Problem analysis:** Identity, formulate, research literature, and analyse complex engineering problems reaching substantiated conclusions using first principles of mathematics, natural sciences, and engineering sciences.
3. **Design/development of solutions:** Design solutions for engineering problems involving research and design system components or processes that meet the specified needs with appropriate consideration for the public health and safety, and the cultural, societal, and environmental considerations.
4. **Conduct investigations of complex problems:** Use research-based knowledge and research methods including design of experiments, analysis and interpretation of data, and synthesis of the information to provide valid conclusions.
5. **Modern tool usage:** Create, select, and apply appropriate techniques, resources, and modern engineering and IT tools including prediction and modeling to research activities with an understanding of the limitations.

6. **The engineer and society:** Apply reasoning informed by the contextual knowledge to assess societal, health, safety, legal and cultural issues and the consequent responsibilities relevant to the professional engineering practice.
7. **Environment and sustainability:** Understand the impact of the research based engineering solutions in societal and environmental contexts, and demonstrate the knowledge of, and need for sustainable development.
8. **Ethics:** Apply ethical principles and commit to professional ethics and responsibilities and norms of the engineering practice to research problems.
9. **Individual and team work:** Function effectively as an individual, and as a member or leader in diverse teams, and in multidisciplinary settings.
10. **Communication:** Communicate effectively on complex engineering activities with the engineering community and with society at large, such as being able to comprehend and write effective reports and design documentation, make effective presentations, and give and receive clear instructions.
11. **Project management and finance:** Demonstrate knowledge and understanding of the engineering and management principles and apply these to one's own work, as a member and leader of a team, to manage projects and in multidisciplinary environments.
12. **Life-long learning:** Recognise the need for, and have the preparation and ability to engage in independent and life-long learning in the broadest context of technological change.

Course Contents:

Unit 1: Introduction to Intellectual Property [07 Hours]

Introduction, types of intellectual property, international organizations, agencies and treaties, importance of intellectual property rights.

Unit 2: Trade Marks [07 Hours]

Purpose and function of trademarks, acquisition of trade mark rights, protectable matter, selecting and evaluating trade mark, trade mark registration processes.

Unit 3: Law of Copy Rights [07 Hours]

Fundamental of copy right law, originality of material, rights of reproduction, rights to perform the work publicly, copy right ownership issues, copy right registration, notice of copy right, international copy right law.

Unit 4: Law of Patents and Trade Secrets [07 Hours]

Foundation of patent law, patent searching process, ownership rights and transfer.

Trade Secrets

Trade secret law, determination of trade secret status, liability for misappropriations of trade secrets, protection for submission, trade secret litigation.

Unfair competition: Misappropriation right of publicity, false advertising.

Unit 5: New Development of Intellectual Property [07 Hours]

New developments in trade mark law; copy right law, patent law, intellectual property audits.

International overview on intellectual property, international trade mark law, copy right law, international patent law, and international development in trade secrets law.

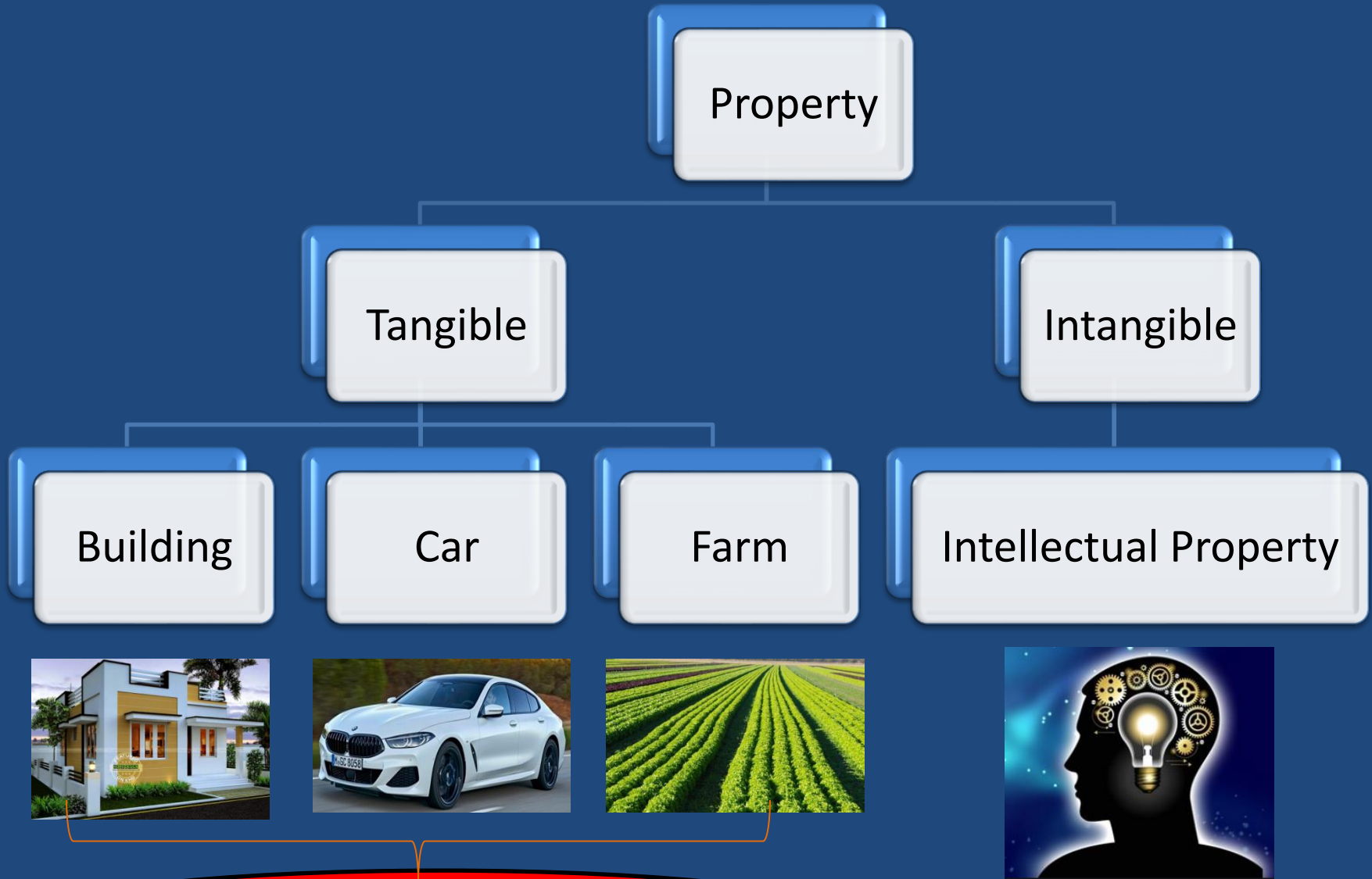
Texts:

1. Deborah, E. Bouchoux, “Intellectual Property Right”, Cengage learning.
2. Prabuddha Ganguli, “Intellectual property right: Unleashing the knowledge economy”, Tata McGraw Hill Publishing Company Ltd.

References:

1. Ajit Parulekar, Sarita D’Souza, “Indian Patents Law-Legal and Business implications”, Macmillan India Ltd., 2006.
2. B. L. Wadhera, “Law related to patents, Trademarks, Copyrights, Designs and Geographical indications”, Universal law Publishing Pvt. Ltd., India, 2000.
3. P. Narayanan, “Law of copyright and Industrial Designs”, Eastern Law house, Delhi, 2010.

Types of Properties

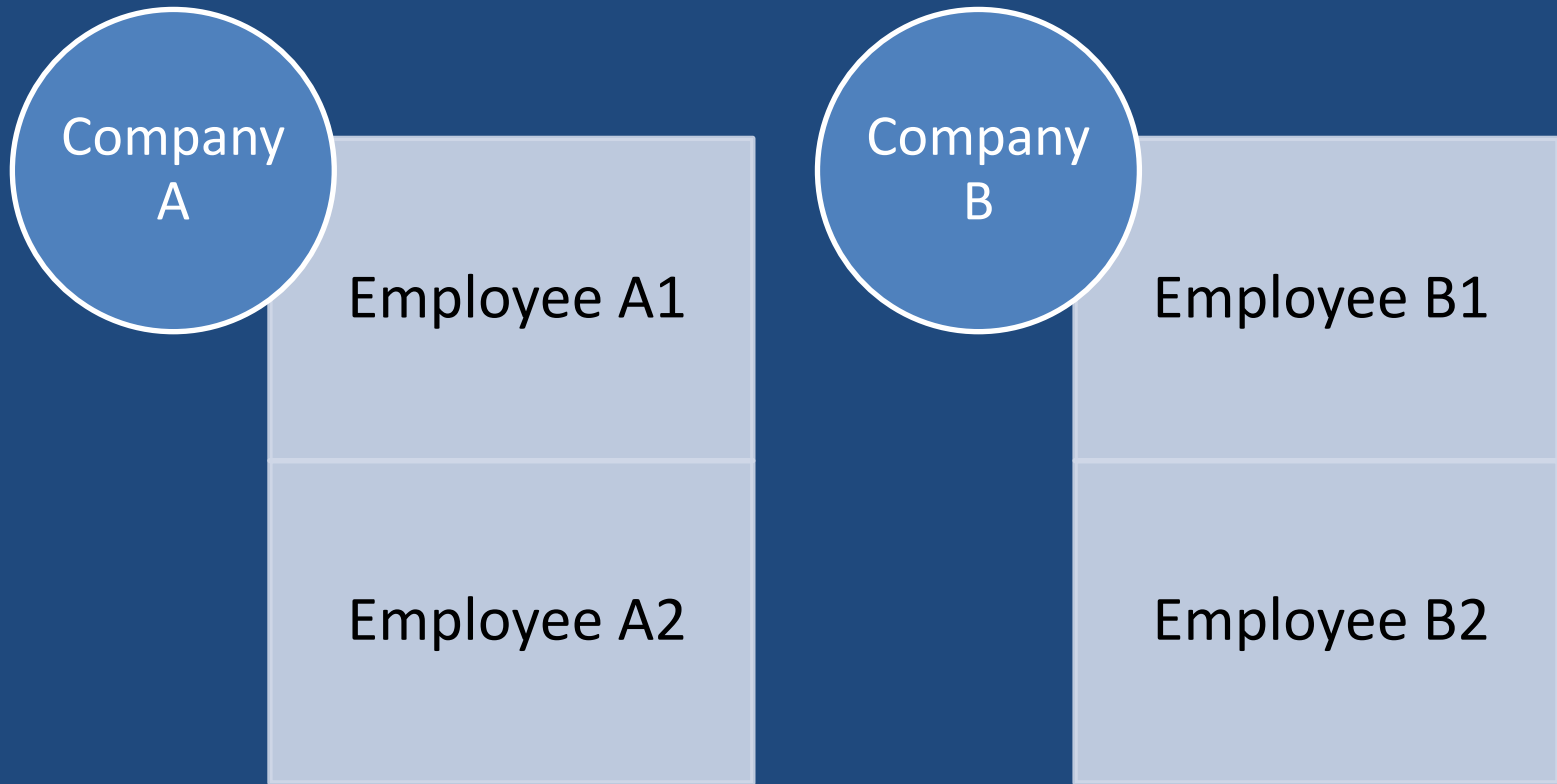


Legal Service Enforcement Agencies

Intellectual Property Definition

- It is the property which come into existence due to intellect of the person or intellect of peoples.
- The Property which comes into existence through the intelligence is the Intellectual property.
- The property which is having commercial value in the market and it come into existence through the intelligence of creator.

Example



Example: Basmati

India

BASMATI

EXPORT

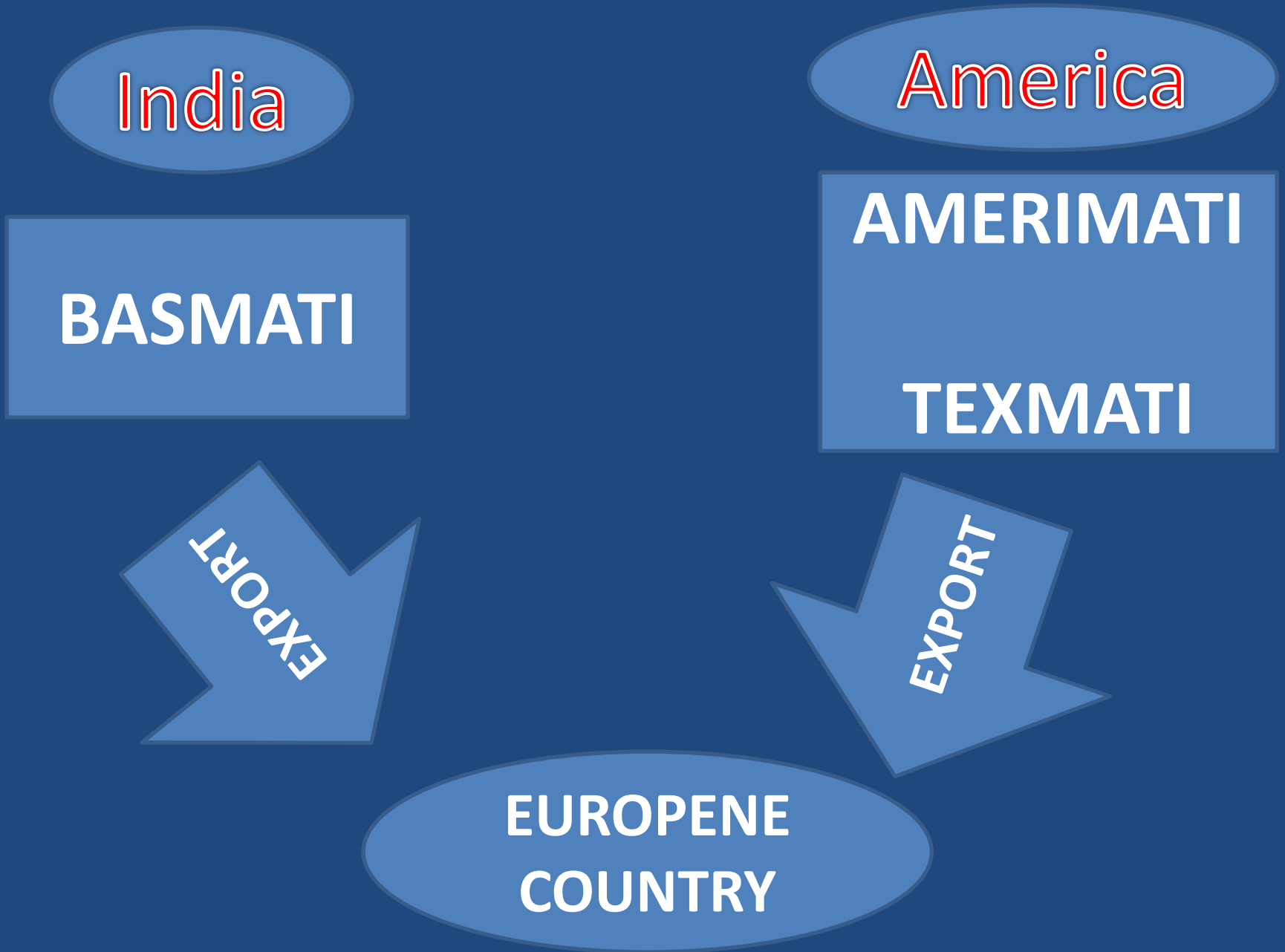
America

AMERIMATI

TEXMATI

EXPORT

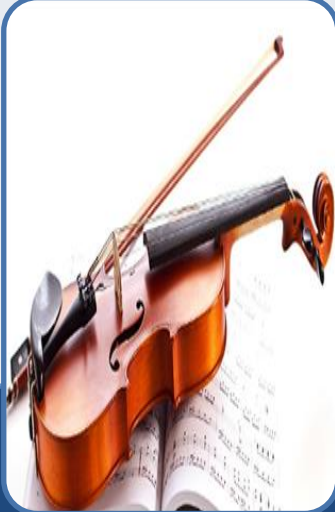
EUROPENE
COUNTRY



Intellectual Properties



Book



**Musical
Work**



Painting



Movies



Software

Intellectual Property

Design

Car

Bike

Fashion

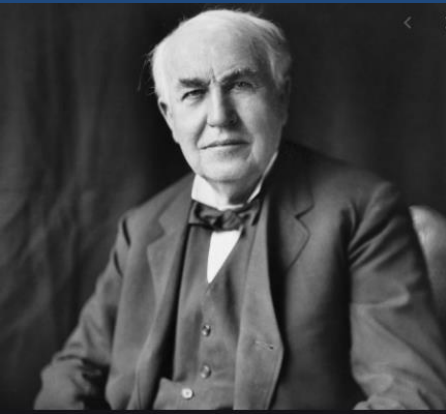
Shoes/
Footware

Jewellery



Intellectual Property

Invention



Thomas Alva Edison



Wright Brothers



Krishna Ella



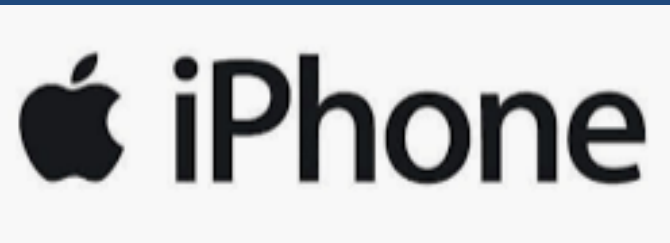
Bulb



Airplane



Trademarks



What is Meant by IPR's

- **Intellectual Property Rights (IPR)** gives them this protection, as well as helping them exploit and control their IP. “The exclusive right granted by State, to prevent others from using, manufacturing, distributing - inventions, processes, applications, new and original designs, trademarks, new plant varieties, data bases and artistic and literary works”.
- Such a person is known as ‘rights owner’ or ‘rights holder’.

Issues of Organizations

- How can a domain name be protected?
- How can a company ensure its trade secrets are not misappropriated by an employee?
- What is the best way to protect a computer program that may be obsolete in three years?
- How can a business be sure its website does not infringe that of a third party?
- How can intellectual property be protected in a global economy?
- How can movies and songs be protected against piracy?

Importance of IPR:

- 80 % Business value lie ...
- Technology transformed from physical based to “Knowledge based”.
- Globalization, Increased in mobility of information and global work force...
- Major challenge before the organization is to cultivate the IPR administration.
- IP professionals assist the organization to adopt the strategies for protection.
- IP professional group make the extensive use of paralegals.

Importance of IPR

- IPR, very broadly, are rights granted to creator and owners of works
- The importance of IPR, in India is well established at all levels of statutory, administrative and judicial.
- India sign the agreement of World Trade Organization (WTO).
- This agreement contains an agreement on Trade Related Aspects of Intellectual Property Rights (TRIPS) which came into force from 1st January 1995.
- Agreement lays down the minimum standards for protection and enforcement of intellectual property rights in member countries.

- The agreement provides for norms and standards in respect of following areas of Intellectual Property:
- IPR encompasses 4 things
 - a). Patents
 - b). Copyrights and related rights.
 - c). Trademarks
 - d). Trade Secrets (Protection of Undisclosed information)

Definitions

TRADEMARKS:

A word, name, symbol, or device used to indicate origin, quality, and ownership of a product or service.

COPYRIGHT:

Protection granted to authors of original works of authorship,

PATENT:

Grant of right to exclude another from making, selling, or importing a patented invention or discovery.

TRADESECRET:

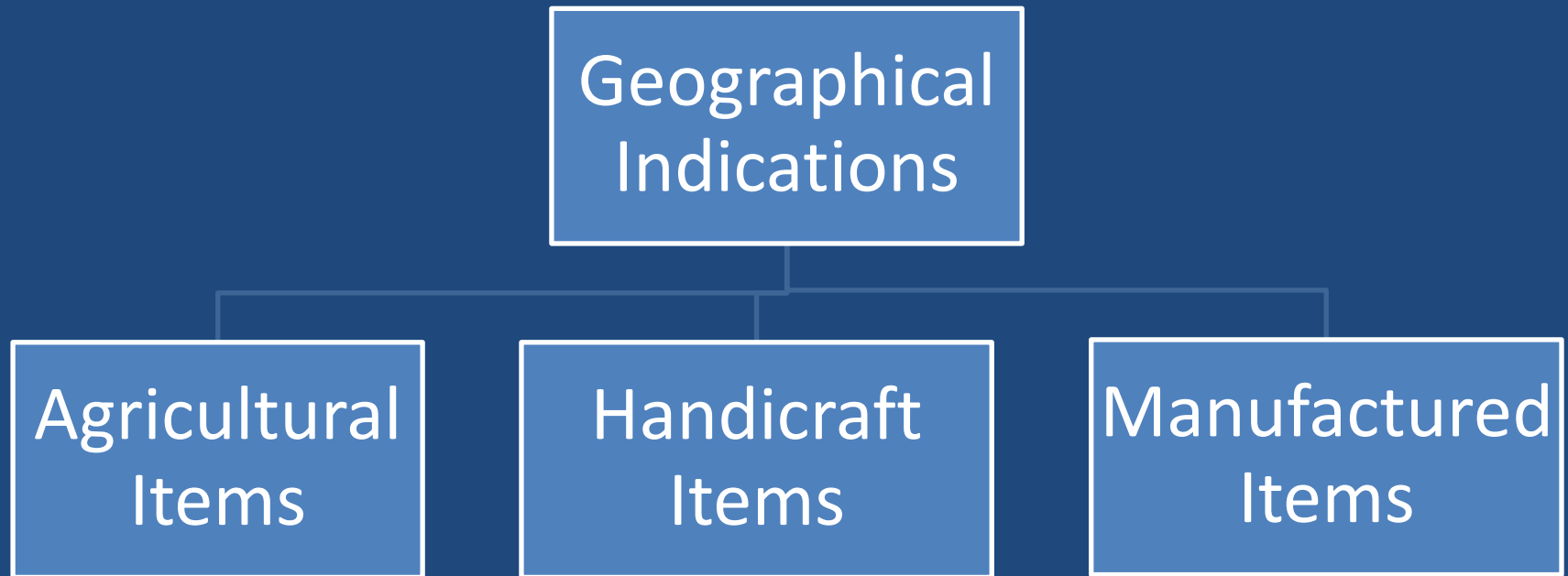
Any valuable business information that, if known by a competitor, would afford the competitor some benefit or advantage

Role of Paralegals

- Assisting in Trademark.
- Assisting in copyright registration.
- Assisting for patenting
- Serving as a communicator of the client.
- Maintain the documents
- Drafting license agreements
- Preparing employment agreements
- Assist in intellectual property audits.
- Assisting in protection of intellectual properties

Geographical Indication

- Identity of product/item due to location is the GI.



1. Darjeeling Tea
2. Assam Tea
3. Alphonso Mango
4. Kashmiri Kesar

1. Kolhapuri Chappal
2. Kashmiri Dashmina
3. Mysore Soap, Agarbati

1. Bikaner Bhujia
2. Agra Peta
3. Mathura Peda
4. Fenny

- GI always registered by “an association”.
- Registration is granted for 10 years and infinite renewal of 10 years each.
- “GI Stamp” on the products/goods can be used by the members of an association.

INTERNATIONAL ORGANIZATION

1. WTO: World Trade Organization

- WTO came into existence from year 1995.
- More than 150 countries are the member of WTO.
- It resolves trade related problems and administers various agreements under this.
- It focuses on the Import and Export duties

India Signed W.T.O. Agreement



On 01 Jan. 1995



**Cooling
Period**

**Agreement Becomes binding on India from
01 Jan. 2005**

2. WIPO (World Intellectual Property Organization):

- Founded in year 1970
- More than 180 countries are the part of WIPO.
- Specialized agency of United Nation.
- Purpose is to promote the intellectual properties throughout the world.
- Administer the 24 agencies of the world.

3. INTA (International Trademark Association):

- Its Not-For-Profit organization
- Mainly administer the trademark related registrations and issues.
- More than 5,500 trademark owners and professional from 190 countries are the part of INTA.

Agencies and Treaties

1. Berne Convention:

- The Berne Convention was created in 1886.
- Created under the leadership of **Victor Hugo**.
- Purpose is to protect literary and artistic works (governing copyrights)
- At present 178 member nations have signed the agreement.
- India is the part of Berne Convention since the 28th April, 1928.
- The Berne Convention is administered by WIPO .
- Agreement states that if copyright is exist in one of these country, then this copyright is valid for all the member countries.

2. Madrid Protocol:

- The Madrid Protocol came into existence in 1996.
- Allows trademark protection to 122 countries, including all 27 countries of the European Union, by means of a centralized, trademark filing procedure.
- It provides convenient and cost-effective solutions.
- Facilitate the international registration in member countries by filing a single, standardized application with a single set of fees.
- Facilitate to also, whose national registration is pending .
- Validity of registration is 10 Years, after that renewal is necessary.

- Domiciled member of signatory country, industrial or commercial establishment with the member countries covered by this protocol.
- Cost of international trademarks:
 1. Basic fees of registration
 2. Additional fees depends on the place where protection wishes
 3. Number of goods and services covers under this.
- India joined the Madrid protocol with effect from **July 8, 2013.**
- USA becomes the member of MADRID in a year 2003.

3. Paris Convention:

- Paris Convention came into existence in 1883.
- Around 151 countries are the part of this
- One of the first treaties address the protection to
 1. Patents
 2. Trademarks
 3. Industrial designs
 4. Geographical Indications
 5. Service Marks
 6. Trade names
- Provision under this convention:
 1. National Treatment: To both contracting and non-contracting country.
 2. Rights of priority: Time period 12 months for patents and 6 months for trademarks and industrial designs.

- Paris Convention is administered by WIPO.
- India signs the Paris convention in a year 1998.

4. Trade Related Aspects of Intellectual Property (TRIPs)

- The TRIPS is an international Agreement administered by the WTO.
- It came into existence from year 1995.
- It lays down the minimum standards for the protection of Intellectual Property Rights (IPR).
- Coverage of TRIPs Agreement:
 1. Copyright:
 2. Industrial designs: Patents
 3. Trademarks
 4. Geographical Indications

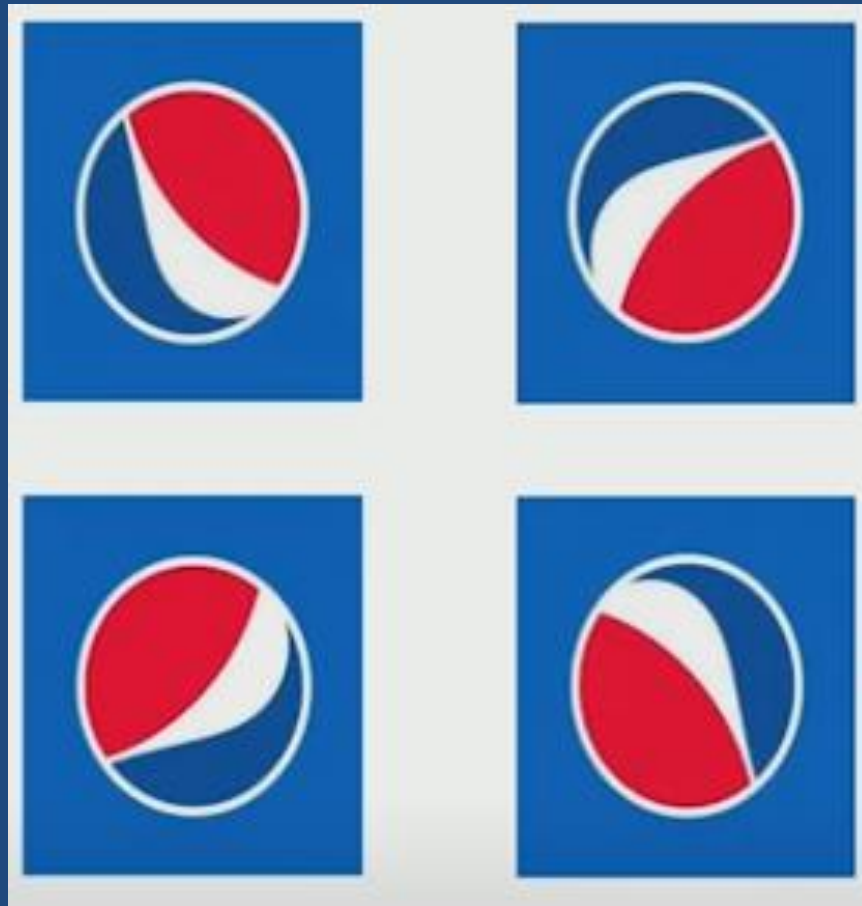
- TRIPS also specifies enforcement procedures, dispute resolution procedures and remedies.
- Implications of TRIPS Agreement:
 1. Protections and enforcement of IPR shall contribute to the promotion of technological innovations.
 2. Member countries should design domestic intellectual property legislations on the basis of TRIPS provisions.
 3. In India, the government has made a major amendment to the 1970 Act in 2005 to accommodate the TRIPS provisions.
 4. In India, Copyrights act was amended and enforced from 2012.

UNIT NO.2

Unit 2: Trade Marks

Purpose and function of trademarks, acquisition of trade mark rights, protectable matter, selecting and evaluating trade mark, trade mark registration processes.

WHICH ONE IS CORRECT?





SEE HERE CAREFULLY?



SEE HERE CAREFULLY?



adidas®

abidas



WHICH ONE IS CORRECT?

Louise Phillepe

Louis Phillippe

Louise Phileppe

Louis Philippe

Louise Philipe

Louis Philipe

DON'T BE IN HURRY WHEN YOU NEED WATER



DO YOU FIND ANY SIMILARITY?







What is Trademark:

- A trademark is a unique mark which is identifying the particular company or services to distinguish it from its competitors.
- Trademark in a commercial language called as a brand name.
- India has emerged as the third largest base for start-ups in the world, according to the NASSCOM Start-Up Ecosystem Report, 2015.
- Due to globalization and interconnectedness trademark laws have fastened.

Objectives of Trademarks

```
graph TD; A[Objectives] --> B[To give monopoly to trademark owner]; A --> C[To protect the consumers from the sell spurious goods];
```

Objectives

To give monopoly to
trademark owner

To protect the consumers
from the sell spurious goods

WHICH ONE IS CORRECT?



(a)



(b)

Infringer does the two activities

```
graph TD; A[Infringer does the two activities] --> B[Infringement]; A --> C[Offence of Passing off];
```

Infringement

Offence of Passing off

Functions of trademarks

- Identify the makers goods or services and distinguish them from others;
- Indicate that all goods or services offered under the mark come from a single producer.
- Indicate that all goods or services offered under the mark are of consistent quality.
- Serve as an advertising device so that consumers link a product or service being offered with a mark



JUST DO IT.



TATA MOTORS
Connecting Aspirations



STORY OF INFRINGEMENT OF TRADEMARK



- In the mid of year 2014 company approached towards the court for complaining against..
- TATA Motors is having long-term reputation and goodwill as the valuable assets of the business.
- Customers are believing that products under the genuine trademark owner are having unchanged quality.
- The court upheld the brand value of TATA MOTORS and its long standing reputation, by giving the notice of infringement of TRADEMARK.

STORY OF INFRINGEMENT OF TRADEMARK



- Every person from the 80's generation probably knows the tune of "Humara Bajaj".



- J.A. Entertainment Private Limited, intended to launch a movie titled – “Humara Bajaj” in 2013.
- Company has stopped the production of BAJAJ Chetak from year 2009.
- The Court thus passed a permanent judiciary order, on the 18th September of 2013, regarding the restraining/ restricting the production house, from using the registered trademark ‘Bajaj’ as also from using the trademark related to ‘Bajaj’ in their proposed film.

What Can be registered as a Trademark ?

Trademark can comprise a logo, words, names, device, label, numerals, colours, a phrase, a sound, smell, shape, picture or any combination of these.

- Any name which is not unusual for trade to adopt as a mark.
- An invented word or any arbitrary dictionary word or words, not being directly descriptive of the character or quality of the goods/service.
- Letters or numerals or any combination thereof.
- Devices, including fancy devices or symbols.
- Monograms.

- Combination of colors or even a single color in combination with a word or device.
- Shape of goods or their packaging.
- Marks constituting a 3- dimensional sign.
- Sound marks when represented in conventional notation or described in words by being graphically represented.

What Can be registered as a Trademark ?

1. Name as a Trademark:

- Names or Surnames but proof of acquiring distinctiveness is necessary
- Rare and uncommon names can registered.





Dabur

The Science of Ayurveda



ADITYA BIRLA GROUP

Johnson & Johnson

MEDICAL DEVICES COMPANIES







Story of Infringement

Mahindra & Mahindra vs Mahendra & Mahendra Seeds

- Complainer is called as Plaintiff.
- Respondent is called as Defendant.
- Mahindra & Mahindra's trademark is having distinctiveness.
- Mahendra & Mahendra failed to showcase the significance against the plaintiff.
- Court decided the matter in favour of Mahindra & Mahindra since it is "Well-Known" mark.

Story of Infringement

Dr. Reddy Laboratories **vs** Reddy Pharmaceuticals

- **Dr. Reddy Laboratories: Manufactured and Sell the pharmaceutical products.**
- **Reddy Pharmaceutical: Engaged in Pharmaceutical products.**
- **Dr. Reddy Laboratories earned enormous trade reputation and good will.**
- **Due to distinctiveness and “Well Known” mark court has taken the favour of Dr. Reddy Laboratories.**

Story of Infringement

Singh & Singh **vs** Singh & Associates

- Singh & Singh haven't acquired any distinctiveness though it is registered as a trademark.
- “Singh” is very common name.
- Court given the favour to “Singh & Associates”.

2. Word Mark:

- A name written as Text or a word or Letter or group of letters is the most common forms word of mark.
- It includes one or more words, letters, numerals or anything written in standard character.
- It could be a text of Name, Brand, Slogan or tagline without design.

Google



iPhone



SUZUKI





JUST DO IT.

TATA MOTORS
Connecting Aspirations



McDonald's
i'm lovin' it®



pepsi®

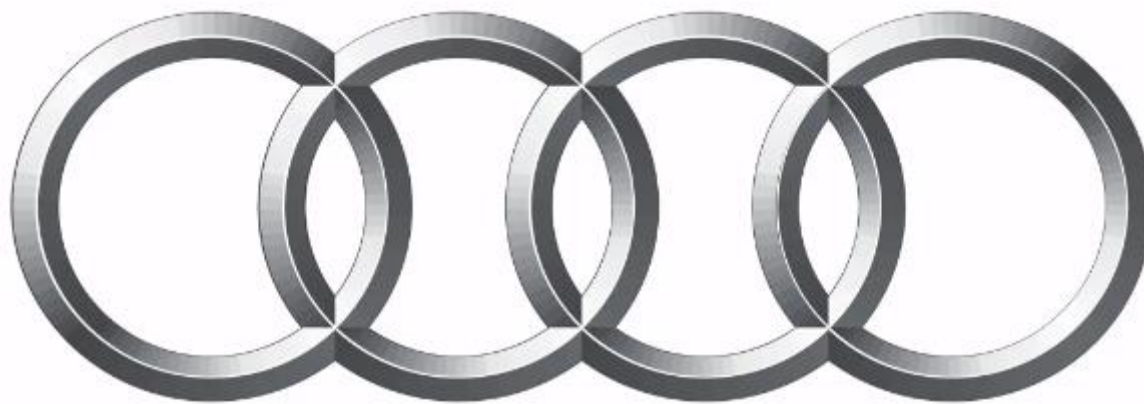
"The choice of a new generation."

3. Color Marks:

- Colour Mark means a trademark consisting of a single colour, or a combination of colours is claimed to be registered as a trade mark.
- It can be claimed when the distinctiveness is claimed in the combination of colours with or without device.
- It can be registered only if the colour is a new invention.
- With the invented colour consumers should directly link with the brand.
- Unless the colour as such identifies the product, it will be difficult to prove distinctiveness with just a single colour.

3. Devices, including fancy devices or symbols:

- Logo, Combination of Words and a Logo, Pictures or Drawings.
- Logos or a specific mode or design of a name is called Device mark.
- This mark includes any label, sticker, monogram, logo or any geometrical figure other than word mark.
- Logos are most common form of mark. It need to be elaborate or explanatory.
- In case trademarks submitted in specific combination of colours shall be presumed that the distinctiveness of the mark is claimed.



Audi





Mercedes-Benz



Monograms:



5. Shape of goods or their packaging:

Shape Mark are capable of distinguishing the goods with its shape or packaging.



KINDS OF TRADEMARKS

KINDS OF TRADEMARKS

Service Marks

Certification Marks

Collective Marks

Well Known Marks

Trade Names

1. Service Marks:

- It is a word, name, symbol, or device, or a combination thereof, used by a person, or that a person has a bona fide intention to use in commerce to identify and distinguish the services of one person from those of others and to indicate the source of those services.

The Visa logo consists of the word "VISA" in a bold, blue, sans-serif font. It is flanked by a thick blue horizontal bar on the left and a thick yellow horizontal bar on the right.The BBC World Service logo features the letters "BBC" in white, each inside a red square, arranged horizontally. Below this, the words "WORLD SERVICE" are written in white, sans-serif capital letters.The Flipkart logo shows the word "Flipkart" in a blue, sans-serif font. To the right of the text is a yellow shopping bag icon with a blue "f" inside.The IndiGo logo features the word "IndiGo" in a white, sans-serif font, with a small trademark symbol (TM) to the upper right of the "o".

- Service Marks refers to the intangible.
- As per the act, term trademark is used to both the goods and services.
- Similarly, term “mark” can be used to trademark, services.

2. Certification Marks:

- A **certification mark** is a word, name, symbol, device, or combination of all these, used by a person **other than** its owner to indicate the particular things.
- **Purpose:**
 - a). It **indicates** features in regard to quality, accuracy, material, mode of manufacture, or some other characteristic;
 - b). To certify regional or other origin; or
 - c). The work done on the goods or services was performed by members of a union or other organization.
- It certifies that the goods on which its mark is placed meet certain objective and preestablished standards.



3. Well-Known Marks:

- It is called as well known marks because it is well known to the consumers.
- All the brand cant not be recognized as a Well-Known marks.
- Criteria for the recognition:
 - a). That the trade mark is well known to the public at large in India;
 - b). The number of persons involved in the channels of distribution of the goods or services;
 - c). The number of actual or potential consumers of the goods or services;
 - d). The duration, extent and geographical area of any use of such trade mark;
 - e). The business circle dealing with those goods or services.



The mammoth
conglomerate
TATA Group

**\$110
Billion**



My Company Photo

Sectors	Tata Companies and Alliances	
IT	1	▶ Tata Consultancy Services
Trading & Investment	2	▶ Tata CLiQ, Tanishq, Starbucks
Tourism & Travel	3	▶ Taj Hotels, Air Asia
Consumer & Retail	4	▶ Tata Oil Mills Company and Chroma
Telecom & Media	5	▶ Tata Teleservices Limited and Tata Sky
Aerospace & Defence	6	▶ Tata A&D
Financial Services	7	▶ Tata Capital, Tata AIG
Steel	8	▶ Tata Steel
Automotive	9	▶ Tata Motors
Infrastructure	10	▶ Tata Housing, Tata Power



Mahindra

MAHINDRA AFTERMARKET

MAHINDRA AUTOMOTIVE

MAHINDRA DEFENCE

MAHINDRA FARM EQUIPMENT

MAHINDRA FINANCIAL SERVICES

MAHINDRA HOSPITALITY

MAHINDRA IT

MAHINDRA PARTNERS

MAHINDRA REAL ESTATE

MAHINDRA AGRI

MAHINDRA TWO WHEELERS

ELEVEN SECTORS. MANY COMPANIES, ONE PURPOSE.

4. Collective Marks:

- The mark belongs to a collective group or association of persons, it is called a collective mark.



5. Tradenames:

- It also known as Commercial Names.
- Used to identify the a business and its goodwill.



6. Sound Marks:

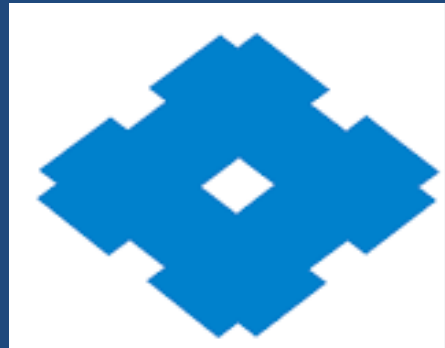
- **Its non-conventional trademark implemented into INDIA in 2017.**
- It performs the trademark function for identifying the commercial origin of products or services.
- Latest amendment into the trademark law, eased out the registration.

Some of the registered sound marks in India are:

- National Stock Exchange – (Theme song)
- ICICI Bank – (Corporate jingle – Dhin Chik Dhin Chik)
- Britannia Industries (Four note bell sound)
- Cisco – (Tune heard on logging in to the conferencing service Web Ex)
- Edgar Rice Burroughs – (Tarzan Yell by its toy action figure)
- Nokia – (Guitar notes on switching on the device)
- Yahoo -(Human voice yodelling Yahoo)

7. Smell Marks:

- The first smell mark was registered in the United Kingdom by Sumitomo Rubber for rose smell for the tyres.



- Very few registrations of smell marks have been registered. Since, it is define subjectively.
- In Indian Trademark law, there is no anykind of provision for subjective marks registration

Domain Names

- Domain is related to the website.
- Companies can registered the domain name as a trademark like (.com, .org, .in, .edu)
- The commercial activities on the Internet are to go on increasing day by day. So, domain names acts as a business identifier and promoter.
- The domain names perform the same functions online, a trademark serves in the offline business dealings and transactions.
- Trademark is the graphical signifier and Domain name is path signifier on the internet.

- Benefits of timely registered domain names:
 - a). Protection against any unauthorized use of domain name by any person or entity.
 - b). It increases access value of the business from any remote place of the world over.
 - c). Function to deliver the products to customers worldwide.
- Can Internet Domain Names be Registered and Protected As Trademarks or Service Marks?
- Conditions to be satisfied for the registration of domain name?
 - a). Should be unambiguously unique name.
 - b). Capable of distinguish and identify the goods and services.
 - c). Should act as reliable source identifier for the products on internet.
 - d). Should satisfy all the rules and regulations applicable to trademark

- The domain names are registered and protected at the entire global level by ICANN [Internet Corporation for Assigned Names and Numbers] organization.

Measures of ICANN

```
graph TD; A[Measures of ICANN] --> B[Rigorous registration by ICANN registrar]; A --> C[Efficient and unbiased policy of dispute resolution by UDNR]
```

Rigorous registration by ICANN registrar

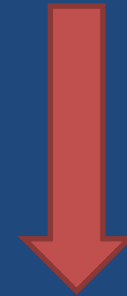
Efficient and unbiased policy of dispute resolution by UDNR

Cases with Domain Name

Maruti Udyog Ltd. (MUL) vs maruti.org



NRI in London



Sale of Second hand cars

Cases with Domain Name

Armani Fashion House

vs

armani.org



Business of architecture

Selecting and Evaluating A Mark

- **Selecting a mark:**
 - a). Companies holds a contest.
 - b). Engage a research and branding firms.
 - c). Name creation software programmes.
- **Reviewing of Proposed Marks:**
 - a). Mark should not be generic.
 - b). Mark should not be descriptive.
 - c). Foreign terms to be translated.

Trademark Search

- Once a proposed mark has been selected, a trademark search should be conducted to ensure that the proposed mark:
 - a). Not descriptively similar.
 - b). Identifying and distinguishing the goods or services.
 - c). To indicate the strength and weakness of the mark.

Trademark Registration Process

01

- **Preparing the Application**

02

- **Drawing of Marks**

03

- **Filing the Application**

04

- **The Examination Process**

05

- **Post Examination Process**

06

- **Registration**

01. Preparing the Application

- Application Consist of:
 - a). Request of registration
 - b). Information of the applicant
 - c). Identification of goods/ services under the category

Please provide the following information to enable us to prepare and file an application for registration of your mark with the United States Patent and Trademark Office (USPTO).

1. Describe the mark.
 - a. Words: _____
 - b. Logo/Design: _____ [describe and attach sample logo]
 - c. Are the words "stylized" (for example, should they be displayed in any particular manner, script, or typeface or is standard printing acceptable)? _____
 - d. Should mark be displayed in any particular color? ____ Yes ____ No
 - e. If mark includes foreign words, geographic terms, or abbreviations, give explanation.

2. Describe the Applicant.
 - a. Full name: _____
 - b. Full address: _____
 - c. Type of legal entity (corporation, partnership, etc.) _____
 - d. Organized under the laws of the state of _____
 - e. Name of authorized person who will sign the application and other documents and his/her title: _____
3. Describe with particularity all of the goods and/or services that are or will be offered under the mark or for which protection is being sought. _____
4. Consult your records and state, with respect to use of the mark by you (or any predecessor) on or in connection with any of the above-described goods or services:
 - a. Has the mark been used in intrastate sales or advertising? If so, give date of first use anywhere.

 - b. Has the mark been used in interstate commerce within the United States? For example, has there been a transaction with an out-of-state customer or has media advertising the goods or services offered under the mark been conducted across state lines? If so, give the date the mark was first used in interstate commerce in the United States (or in foreign commerce between a foreign country and the United States). Note that use of the mark in advertising preparatory to opening a business is not sufficient. _____
 - c. Is there a bona fide intent to use the mark in the United States if it has not yet been used in the United States? _____
5. Provide information as to how the mark is actually used (if it is in use).
 - a. Newspaper or other media advertising: ____ Yes ____ No
 - b. Signs or store displays: ____ Yes ____ No
 - c. Direct mail, such as brochures: ____ Yes ____ No
 - d. Labels, tags, packaging: ____ Yes ____ No
 - e. Other (describe): _____
6. If the mark is in use, please provide at least three original specimens showing the mark as it is actually used in connection with the sale or advertising of the goods or services. If the mark is used in connection with goods, labels, tags, boxes, or other packaging are acceptable as long as they show the mark. If the mark is used in connection with services, brochures and other advertising materials are likely acceptable as long as they show the mark. If the specimens are bulky, you may provide photographs of the specimens as long as the mark is clear and legible in the photos.

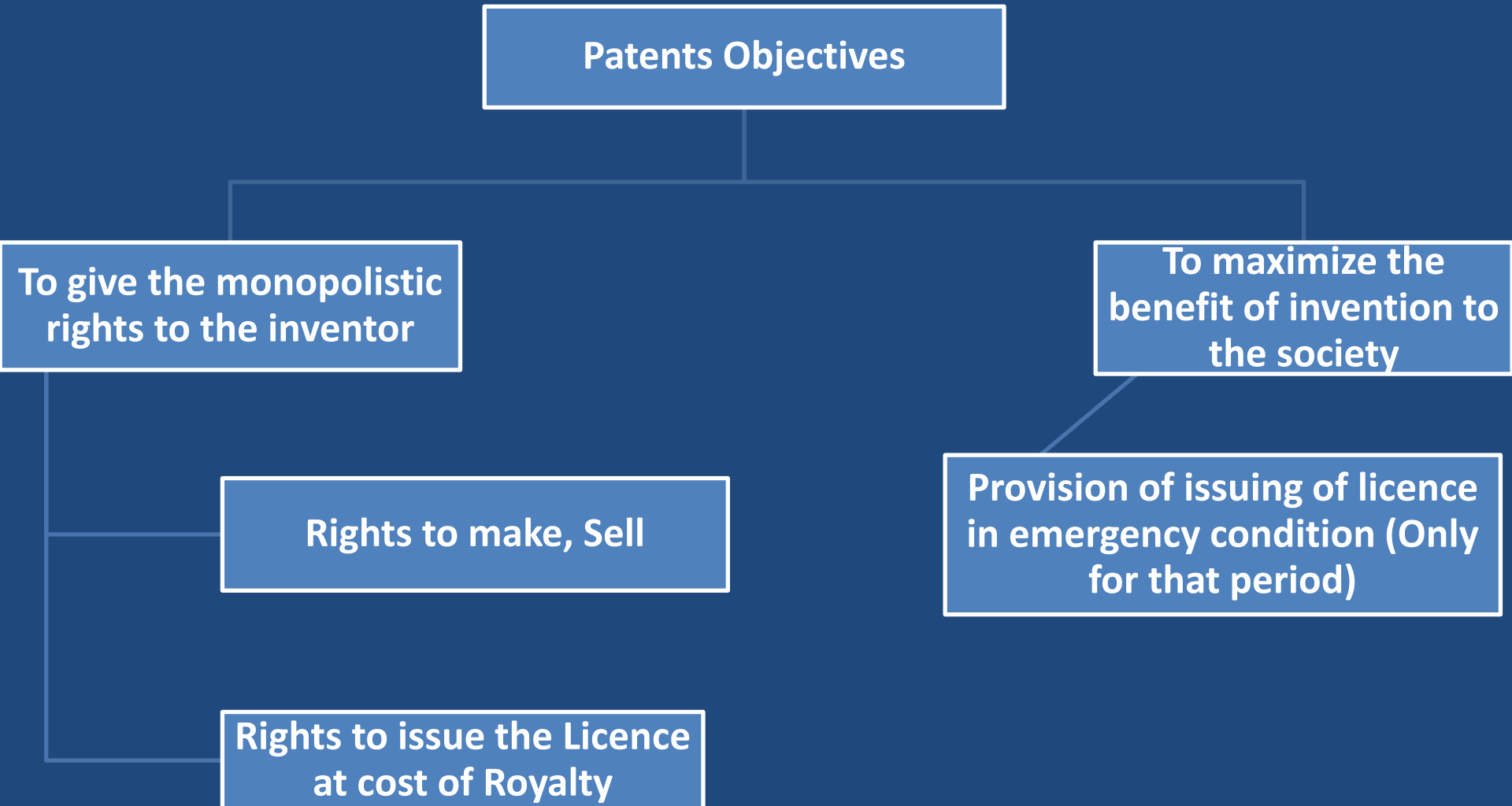
UNIT : Laws of Patents

Unit 4: Law of Patents

Foundation of patent law, patent searching process, ownership rights and transfer.

Patents

- It is a legal right granted, that permits its owner to prevent others from making, using, selling, or importing an invention



PATENTABILITY

- Four basic requirements for becoming the eligible for patent protection:
 1. The invention must be one of the types specified by statute as patentable subject matter (namely, a utility, design, or plant patent).
 2. The invention must be useful (if the application is for a utility patent).
 3. The invention must be novel.
 4. The invention must be nonobvious.

Types of Patents:

- There are three types of patents

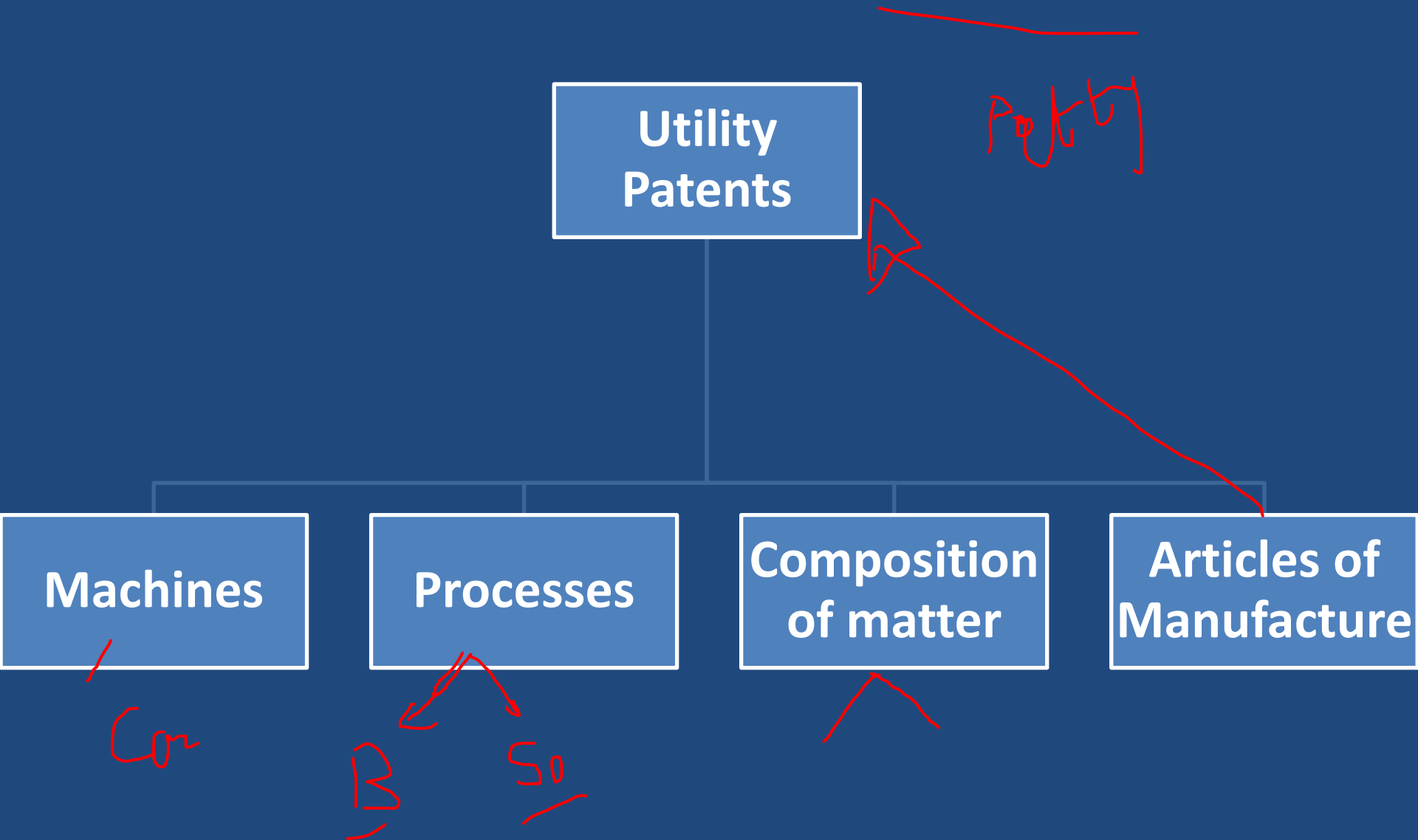
1. Utility patents



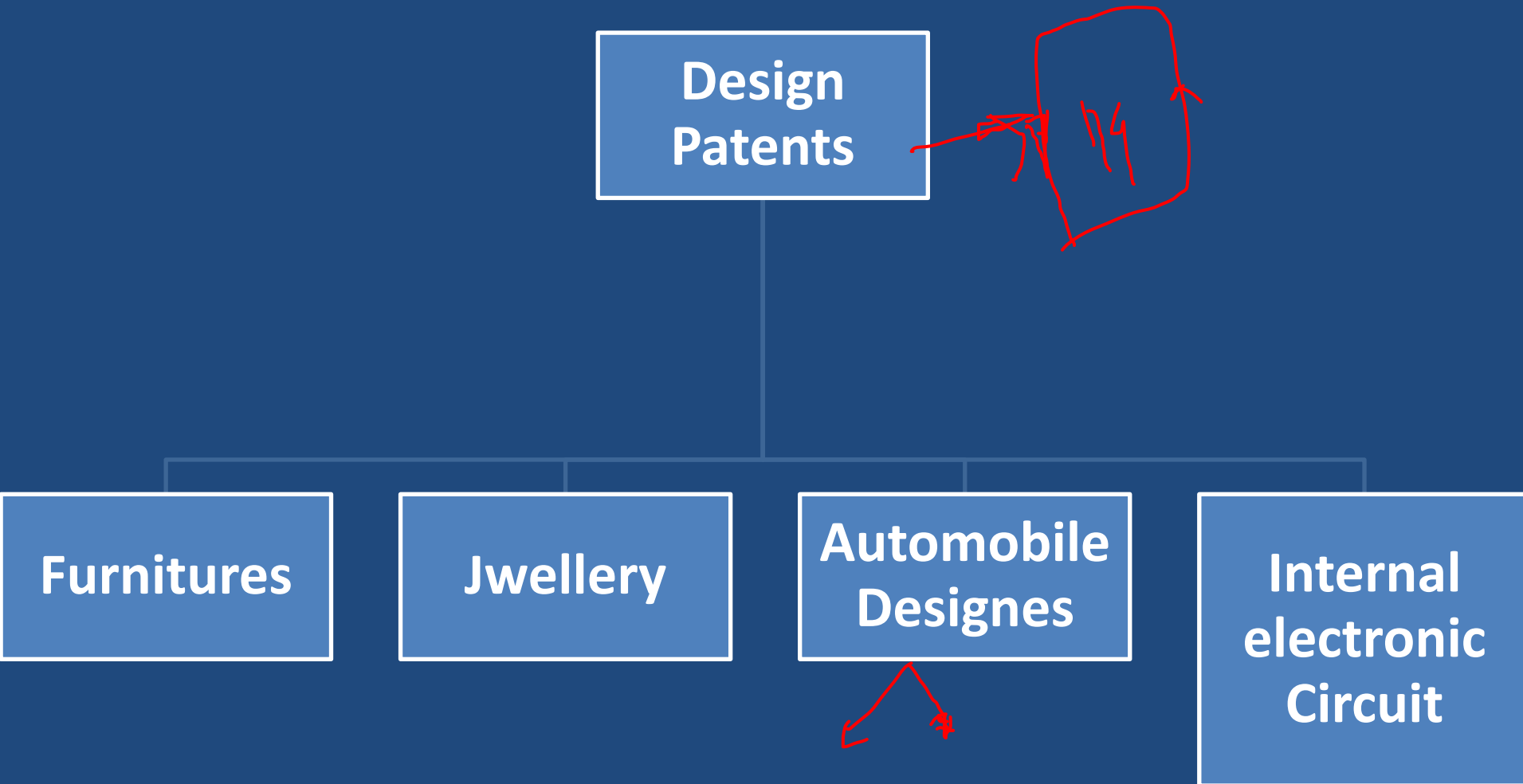
2. Design patents

3. Plant patents

What can be registered under Utility Patents?



What can be registered under Design Patents?



Requirements of Design Patents

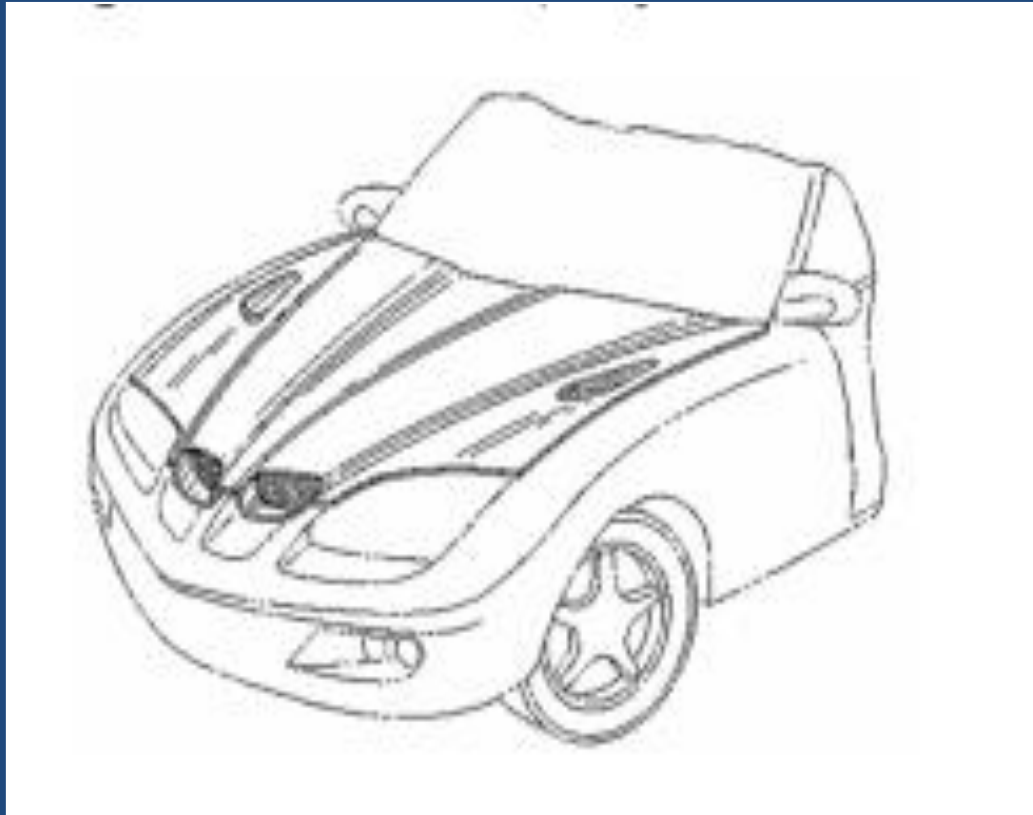
```
graph TD; A[Requirements of Design Patents] --> B[Articles of Manufacturing]; A --> C[New]; A --> D[Original]; A --> E[Ornamental];
```

**Articles of
Manufacturing**

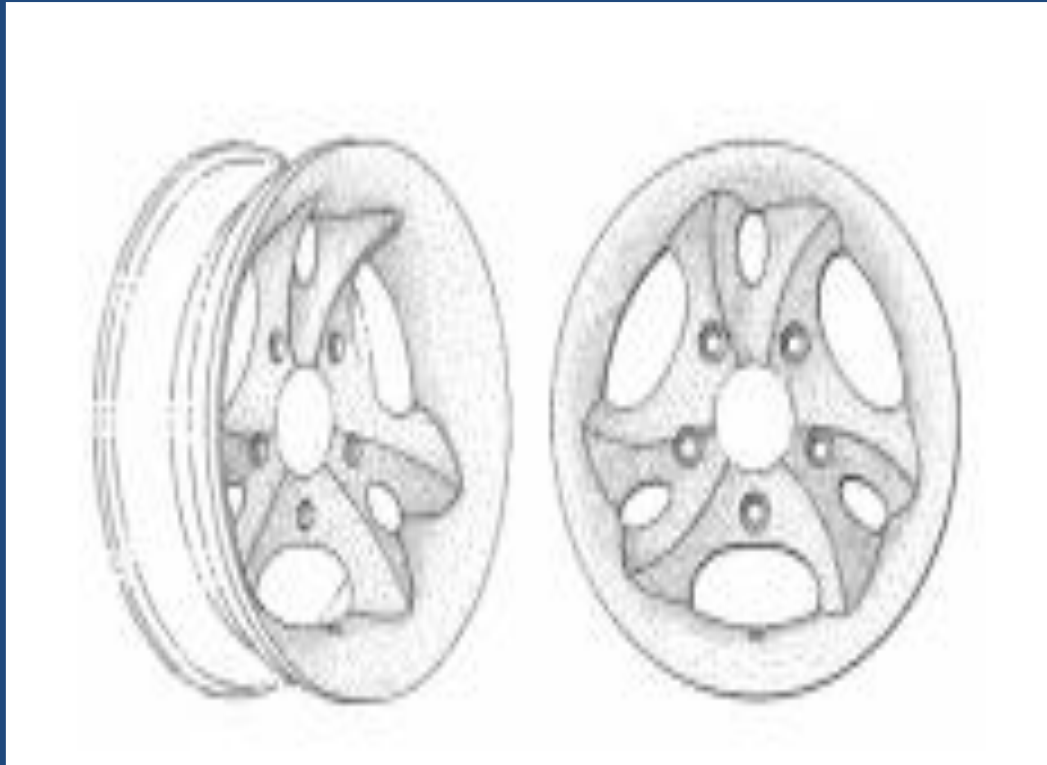
New

Original

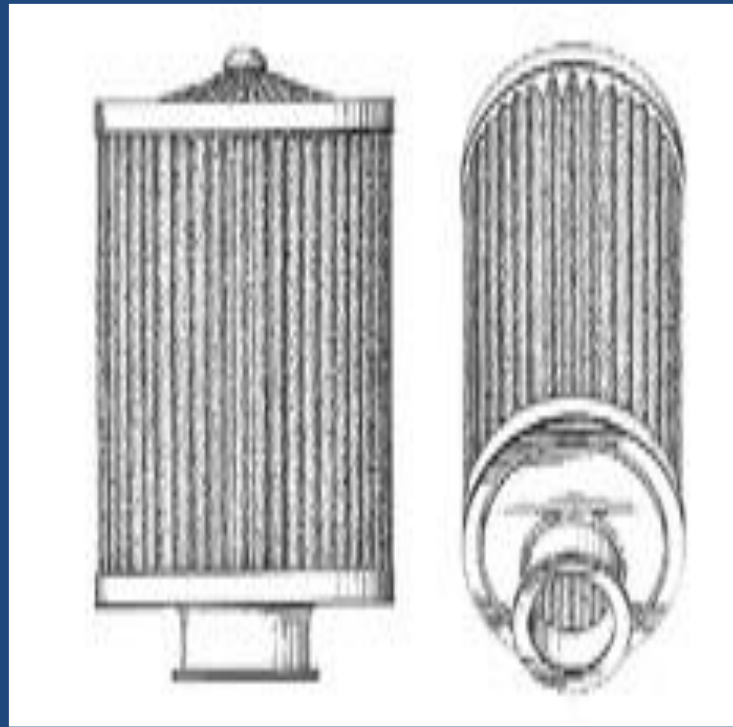
Ornamental



**Automobile Hood, SLP Performance Parts, Inc
[Design Patent No. D418,465]**



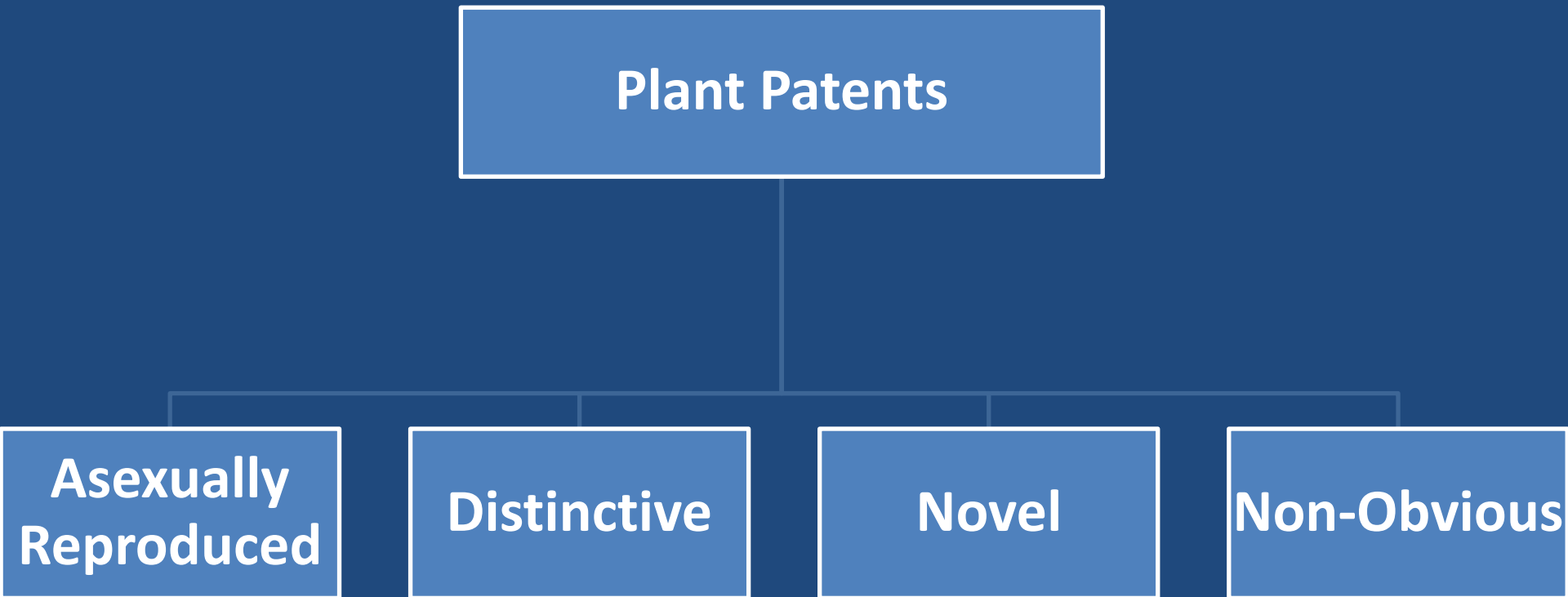
**Vehicle Wheel Front Face, American Racing Equipment, Inc.
[Design Patent No. D367,461]**



**Cylindrical Pleated Air Filter With Top and Sidewall Filtering Areas,
K & N Engineering, Inc. [Design Patent No. D403,414]**

Plant Patents

- A plant patent is granted by the government to an inventor who has invented or discovered and asexually reproduced a distinct and new variety of plant.



Kentucky Bluegrass: U.S. Plant Patent No. PP4,704.



- Excellent tolerance to drought
- Low fertilizer requirements
- Deep rooting system

The plant tolerates a close cut, is highly resistant to most common bluegrass diseases, is extremely aggressive

Some Patented Plants

Plant	Patent Number
Grape plant "La Crescent"	PP14617
Apple tree "Eve's Apple"	PP8544
Strawberry plant "Aromas"	PP10451
Apricot tree "Ruby"	PP8177
Blueberry plant "Emerald"	PP12165



Comparison of Requirement

	Utility Patent 35 U.S.C. § 101	Design Patent 35 U.S.C. § 171	Plant Patent 35 U.S.C. § 161
Inventions Covered	Processes, machines, manufactures, compositions of matter, or improvements thereof	Designs for articles of manufacture	Plant varieties
Usefulness Required	Yes	No	No
Novelty Required	Yes	Yes	Yes
Nonobviousness Required	Yes	Yes (referred to as "originality")	Yes
Ornamentality Required	NA	Yes	No
Asexual Reproduction Required	NA	NA	Yes

THANK YOU